

Mutual Non-Disclosure &

Proprietary Information Agreement (Revised)

Between: ATLAS Travel Club LLC (Delaware / Wyoming LLC) — “the Company”

And: Prospective Investor / Advisor (“Recipient”)

Effective Date: September 19, 2026

Governing Law: State of Delaware (or Wyoming, at the Company’s election)

Term: Twenty-four (24) months from Effective Date

Classification: Confidential — Pre-Diligence

1. Parties and Purpose

This Mutual Non-Disclosure & Proprietary Information Agreement (this “**Agreement**”) is entered into as of the Effective Date set forth on the cover page by and between **ATLAS Travel Club LLC**, a Manager-Managed Limited Liability Company organized under the laws of the State of Delaware and the State of Wyoming, with its principal place of business at [Registered Agent Address] (the “**Company**” or “**Discloser**”), and the undersigned prospective investor or advisor (“**Recipient**”). Each of the Company and Recipient may be referred to herein as a “**Party**” and collectively as the “**Parties**”.

The Parties anticipate engaging in discussions and exchanging information relating to a potential investment in, or advisory relationship with, the Company, including review of the ATLAS Investor Document Suite, financial models, unit economics, supplier contracts, software architecture, member data summaries, and related materials (the “**Purpose**”).

2. Definition of Confidential Information

“**Confidential Information**” means any non-public information disclosed by one Party (the “**Disclosing Party**”) to the other Party (the “**Receiving Party**”), in any form, whether marked as confidential or reasonably understood to be confidential given the nature of the information and circumstances of disclosure. Confidential Information includes, without limitation:

- Business plans, go-to-market strategy, product roadmaps, and partnership pipelines;
- Financial models, unit economics, revenue projections, member counts, churn metrics, and pricing schedules;
- Supplier and bedbank contracts (including Hotelbeds, RateHawk, WebBeds, Duffel, Stripe, Wise, Airalo, Pruvo, and AirHelp), wholesale rate cards, and commercial terms;
- **Proprietary software architectures deployed on Google Cloud Platform (Cloud Run, Vertex AI, Cloud SQL), custom Gemini prompt engineering pipelines, and B2B bedbank integration schemas;**
- Source code, technical architecture diagrams, API credentials, security procedures, and infrastructure configurations;
- Member and prospect data, including contact information, booking history, and spend analytics, in aggregated or individual form;
- Legal opinions, regulatory interpretations (including rate-parity and closed-loop distribution analysis), and litigation strategy;
- Any other information that a reasonable person would understand to be proprietary or confidential under the circumstances.

3. Exclusions from Confidential Information

The obligations set forth in this Agreement shall not apply to any information that the Receiving Party can demonstrate by competent written evidence: (a) was already lawfully in the Receiving Party’s possession, free of any obligation of confidentiality, prior to disclosure by the Disclosing Party; (b) is or becomes generally available to the public through no act or omission of the Receiving Party in breach of this Agreement; (c) is rightfully received by the Receiving Party from a third party who is not under any obligation of confidentiality to the Disclosing Party; or (d) is independently developed by the Receiving

Party without use of or reference to the Disclosing Party's Confidential Information.

4. Obligations of the Receiving Party

The Receiving Party shall: (a) hold the Disclosing Party's Confidential Information in strict confidence and use the same degree of care it uses to protect its own most sensitive confidential information, but in no event less than a reasonable degree of care; (b) use Confidential Information solely for the Purpose described in Section 1 and for no other purpose, including without limitation any commercial exploitation, reverse engineering, or competitive analysis; and (c) not disclose Confidential Information to any third party without the Disclosing Party's prior written consent, except as expressly permitted by Section 5.

5. Permitted Disclosure to Professional Representatives

The Receiving Party may disclose Confidential Information to its legal counsel, certified public accountants, or financial advisors (each, a **"Representative"**) solely to the extent reasonably necessary for the Purpose, provided that (a) each Representative is informed of the confidential nature of the information and is bound by written or professional obligations of confidentiality no less protective than those set forth herein, and (b) the Receiving Party remains fully liable for any act or omission of its Representatives that would constitute a breach of this Agreement if committed by the Receiving Party.

6. Compulsory Disclosure

If the Receiving Party is required by law, regulation, subpoena, or court order to disclose any Confidential Information, it shall, to the extent legally permitted, provide prompt written notice to the Disclosing Party so that the Disclosing Party may seek a protective order or other appropriate remedy. The Receiving Party shall disclose only that portion of the Confidential Information that it is legally required to disclose and shall use reasonable efforts to obtain confidential treatment for the disclosed information.

7. No License; No Obligation to Proceed

Nothing in this Agreement shall be construed as granting any license, right, or interest, by implication, estoppel, or otherwise, in or to any Confidential Information, intellectual property, or business of the Disclosing Party. All Confidential Information remains the sole and exclusive property of the Disclosing Party. This Agreement does not obligate either Party to enter into any further agreement, investment, or business relationship, and each Party may terminate discussions at any time, in its sole discretion, without liability.

8. Term; Return or Destruction of Confidential Information

This Agreement shall commence on the Effective Date and remain in force for twenty-four (24) months, provided that the confidentiality, non-use, and non-disclosure obligations with respect to any Confidential Information received hereunder shall survive for a period of five (5) years from the date of disclosure, except that obligations relating to trade secrets shall continue for so long as such information remains a trade secret under applicable law. Upon the Disclosing Party's written request, or upon termination of the Parties' discussions, the Receiving Party shall, within ten (10) business days, return or destroy all Confidential Information in its possession or control, including all copies, summaries, and derivative works, and certify such destruction in writing upon request.

9. Remedies

The Receiving Party acknowledges that any breach of this Agreement may cause irreparable harm to the Disclosing Party for which monetary damages would be an inadequate remedy. Accordingly, the Disclosing Party shall be entitled to seek immediate injunctive relief, specific performance, and other equitable remedies, in addition to any other remedies available at law or in equity, without the requirement of posting a bond or proving actual damages.

10. Governing Law and Jurisdiction (Limited Liability Company)

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, United States, as applied to contracts entered into and performed entirely within Delaware by and between Delaware limited liability companies, without regard to its conflict of laws principles. **At the election of the Company**, this Agreement may instead be governed by the laws of the State of Wyoming, as applied to contracts entered into and performed entirely within Wyoming by and between Wyoming limited liability companies. The Parties submit to the exclusive jurisdiction of the state and federal courts located in Wilmington, Delaware (or, if the Company elects Wyoming, in Cheyenne, Wyoming) for any dispute arising out of or relating to this Agreement, and waive any objection to venue or inconvenient forum in such courts.

11. Miscellaneous

11.1 Entire Agreement. This Agreement constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior or contemporaneous oral or written communications relating thereto. **11.2 Amendment.** This Agreement may be amended only by a written instrument signed by both Parties. **11.3 Severability.** If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect. **11.4 No Waiver.** No failure or delay by either Party in exercising any right under this Agreement shall operate as a waiver thereof. **11.5 Assignment.** Neither Party may assign this Agreement without the prior written consent of the other Party, except in connection with a merger, acquisition, or sale of all or substantially all of its assets. **11.6 Counterparts and Electronic Signature.** This Agreement may be executed in counterparts, including by electronic signature, each of which shall be deemed an original.

12. Execution and Electronic Signature (E-SIGN Act)

By signing below, the Parties acknowledge that they have read, understood, and agreed to be bound by this Mutual Non-Disclosure & Proprietary Information Agreement as of the Effective Date. Pursuant to the Electronic Signatures in Global and National Commerce Act (E-SIGN Act, 15 U.S.C. § 7001 et seq.), the Parties agree that electronic signatures, digital signatures, and electronic records shall have the same legal effect, validity, and enforceability as handwritten signatures and paper records. Each Party consents to conducting this transaction electronically and acknowledges that a signed PDF copy or DocuSign envelope constitutes an original execution of this Agreement.

ATLAS TRAVEL CLUB LLC (Discloser)

RECIPIENT (Investor / Advisor)

Authorized Signatory: _____	Authorized Signatory: _____
Title: Managing Member / Manager	Title: _____
Printed Name: _____	Printed Name: _____
Date: _____	Date: _____
Email: executive@atlas-travel-club.com	Email: _____
Digital Signature (E-SIGN Act § 7001):	Digital Signature (E-SIGN Act § 7001):
Signature Hash: sha256:_____	Signature Hash: sha256:_____
IP Timestamp: ____-__-__T__:__:__Z (UTC)	IP Timestamp: ____-__-__T__:__:__Z (UTC)
Verification: ____-__-__T__:__:__Z · IP: ____.____.____.____	Verification: ____-__-__T__:__:__Z · IP: ____.____.____.____
E-SIGN Consent: ☒ Agreed · 15 U.S.C. § 7001	E-SIGN Consent: ☒ Agreed · 15 U.S.C. § 7001